TOWN OF MOUNT PLEASANT, SOUTH CAROLINA
BOARD OF ZONING APPEALS
DECEMBER 5, 2022
MINUTES

STAFF REPORT

Present: Steven Wood, Chair, Elliott Barrow, Aaron Butner, Julian Hopkins, Megan Stevens (entered at 6:26 pm).
Absent: Giles Branch, Cameron Swails.
Staff: Chris Swalhah, Michael Robertson, Peter Stone, David Pagliarini, Lynnette Lynes

Mr. Wood called the meeting to order at 6:00 pm.

A. Approval of Agenda

Mr. Butner moved for approval of the agenda. Mr. Hopkins seconded the motion. All in favor.

B. Approval of Minutes

Mr. Butner moved for approval of the minutes. Mr. Hopkins seconded the motion. All in favor.

C. Public Comment

There being no comments, Mr. Wood continued with the agenda.

D. General Correspondence

Mr. Swalhah stated that all correspondence was linked to the agenda and distributed to the Board.

E. Explanation of Procedures
F. Administration of Oath

Mr. Wood reviewed the procedures with the Board and administered the oath to those speaking.

G. Business

1. Case A-02-22/V-31-22, Earl's Court, TMS# 532-01-00-138. Appeal of the Zoning Administrator's application of 156.201(I)(5)(d)(2)(a) requiring the following tree species to be planted per 100' of street frontage: Southern Red Oak, Live Oak, Willow Oak, Elm varieties and American Beech.

- Mr. Wood stated that the appeal would be considered first.

- Mr. Swalhah reviewed staff comments with the Board.

- Ms. Cheryl Shoun, attorney for the applicant, reviewed the request with the Board.

- Mr. Peter Stone reviewed the issue of timeliness of the appeal with the Board.

- *Mr. Hopkins moved to convene into executive session for legal advice. Mr. Barrow seconded the motion. All in favor.*

The Board convened into executive session at 6:16 pm for legal advice.

Ms. Stevens entered at this time (6:26 pm).

The Board reconvened at 6:27 pm. No action was taken while in executive session.

- *Mr. Barrow moved for approval of the determination that the appeal was submitted in a timely manner. Mr. Butner seconded the motion. All in favor with Ms. Stevens abstaining.*

- Mr. Wood stated that the merits of the appeal would now be heard.

- Mr. Swalhah and Mr. Stone reviewed staff comments with the Board.

- Ms. Shoun reviewed the request with the Board.

- Mr. Todd Richardson, landscape architect for the applicant, reviewed the tree species proposed and stated that they disagree with staff's determination.

- Mr. Mike Tinkey, 108 Venning, expressed concern with the removal of trees. He stated that the list of trees allowed by Dominion Energy are not native species. He suggested that historic trees should be preserved whenever possible. He expressed concern with the amount of lot coverage that meant the removal of a number of significant trees on the property. He suggested that this should be reviewed and suggested that the mitigation payment should be used to plant additional trees within the surrounding neighborhood. He suggested that the request is providing the best option of species as it appears that the landscape architect is doing their best for the site given the parameters of Dominion Energy.

- Mr. Robertson, Zoning Administrator, suggested that the issue is an appeal of an administrative decision. He stated that the decision to be made is what is required by the Town and did staff make a correct decision not what Dominion Energy requires. He suggested that the correct decision was made by staff and therefore the appeal should be denied. He suggested that the outside of the staff decision, there is an issue of a variance that should be considered separate from the appeal.

- Ms. Shoun suggested that this was not a "shell game," but was the issue of settlement agreement that the Town is a part of. She suggested that the ordinance does not require the use of certain species, but because of the language in the ordinance there is lee way.

- There being no further comments, Mr. Wood closed public comment.

- *Mr. Barrow moved to affirm the appeal. Mr. Hopkins seconded the motion. Motion passed on a 3 to 1 vote with Mr. Barrow, Mr. Hopkins, and Mr. Wood in favor; Mr. Butner opposed; and Ms. Stevens abstaining.*

Based on the appeal being affirmed, the variance was dismissed.

2. Case V-27-2022, 110 Pitt Street, TMS# 532-01-00-088. Request for relief from the strict application of §156.313(F)(3)(c) to allow a Building Area Ratio (B.A.R.) of 72.8%. The ordinance limits the B.A.R. to 50%.

- Mr. Swalhah reviewed staff comments with the Board.

- Ms. Julie O'Connor, architect, reviewed the request with the Board.

- Mr. Swalhah read the correspondence received for the record.

- *Ms. Stevens moved for approval of the variance based on the findings that there are extraordinary conditions as the property is one of two R-4 in the old village and has historic value, and it is on a small lot; does not apply to other property as it is one of two properties zoned R-4 and the other surrounding property is commercial; if denied, it would restrict the use of the property as the bedrooms are on second floor and not accessible so an elevator is needed; not detriment to neighborhood as the lot coverage is being reduced and all neighbors are in favor of the request. Mr. Butner seconded the motion. Motion passed on a 3 to2 vote with Mr. Butner, Mr. Hopkins, and Ms. Stevens in favor; Mr. Barrow and Mr. Wood opposed.*

3. Case V-28-2022, 1620 Wallers Ferry Road, TMS# 600-01-00-267. Request for relief from the strict application of §156.325(Table) to allow a 2.89-foot encroachment into the setback on an existing accessory structure.

- Mr. Swalhah reviewed staff comments with the Board.

- Mr. Babak Bryan, architect, reviewed the request with the Board.

- There being no comments, Mr. Wood closed public comment.

- *Mr. Butner moved for approval based on the findings that there are extraordinary conditions as this is an existing illegal structure and is being brought up to code, does not pertain to other property as it is a detached garage; denial would restrict use of property and would not be a detriment to neighborhood. Mr. Hopkins seconded the motion. All in favor.*

4. Case V-29-2022, 642 Spark Street, TMS# 535-04-00-011. Request for relief from the strict application of §156.225 (C) to allow the removal of a Historic 36'' Oak tree.

- Mr. Swalhah reviewed staff comments with the Board.

- Ms. Helen Harleston, owner, reviewed the request with the Board.

- There being no comments, Mr. Wood closed public comment.

- *Ms. Stevens moved for approval based on the findings that all criteria has been met to grant the variance. Mr. Hopkins seconded the motion. All in favor.*

5. Case V-30-2022, 1078 Johnnie Dodds Boulevard, TMS# 535-00-00-141. Request for relief from the strict application of §156.140(D)(5) to allow an improvement/renovation exceeding 50% of the assessed value of the nonconforming property.

- Mr. Swalhah reviewed staff comments with the Board.

- Mr. Donald Renaldo, owner, reviewed the request with the Board.

- There being no comments, Mr. Wood closed public comment.

- *Mr. Hopkins moved for approval based on the findings that it meets all criteria to grant a variance, particularly with regard to improvement of the property while keeping it within the same zoning. Mr. Butner seconded the motion. All in favor.*

H. Approval of Final Order

- The Board signed final orders.

There being no further business, the meeting adjourned at 7:53 pm.

Submitted by,
L. Lynes
BOZA12052022